

21STCV02534 21STCV02534

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CB%2C07%2F27%2F2026

Source SHA-256: a9b756c19133843edc7c0a6131f448da26fbce3f1f43e418e2e9b392e7495967

Case Number: 21STCV02534 Hearing Date: July 27, 2026 Dept: B

Tentative Ruling

Kelly v. Westfield Topanga Owner,

Case no. 21STCV02534

Hearing date July 27, 2026

Plaintiff

Kelly's Motion to Compel Compliance/RFP re: CSI Business Records

Plaintiff

Kelly sues defendants Westfield Topanga Owner LLC, associated Westfield entities, CSI Electrical Contractors, Inc. and others for injuries sustained when plaintiff, who was working on electrical wiring at the Westfield Topanga property, fell from a ladder. Plaintiff served an amended deposition notice and inspection demand on CSI on 4/22/26 and moves to compel compliance. CSI opposes.

A

deposition subpoena for production of business records is governed by Code Civ. Proc. §1985.3. When the subpoenaed party fails to comply, the court "may make an order directing compliance with the subpoena" pursuant to Code Civ. Proc. §1987.1(a). Further, the court must impose monetary sanctions for failing to respond unless substantial justification is shown. See Code Civ. Proc. §§2025.480(j), 2020.410(d).

Plaintiff

asserts CSI refuses to produce documents relating to "how CSI controlled safety

on this project, its Project Safety Audits, its Activity Hazard Analysis forms, its coordination and look-ahead schedules, its post-incident review of the... accident at issue, and its communications about the ladder and the project's ladder policy." Mtn. 2:27-3:2. Plaintiff argues CSI claimed "no responsive investigative reports exist," and "no responsive documents regarding the ladder" are in its possession. Id. at 3:3-5. Plaintiff alleges these claims are false, and CSI's relevance and scope objections are brought in bad faith in an attempt to prevent plaintiff from obtaining discovery as to CSI's alleged control of the subject ladder and worksite safety procedures.

CSI

argues plaintiff's motion procedurally fails to comply with Code Civ. Proc. §1005(b). Per section 1005(b), supporting papers must be filed and served sixteen court days before hearing. CSI argues plaintiff failed to attach the deposition subpoena and attached demand for production and CSI's objections, only attaching meet-and-confer communications. Decl. Henriks, exh. 1.

CSI

attached the discovery to the opposition, and plaintiff to the reply. Both parties are aware of the specific discovery and objections at issue. The parties have complete information to bring and defend this motion. The procedural argument is unavailing.

CSI

argues the subject ladder was not in its possession or control, so documents relating to CSI's own employees' usage of ladders is irrelevant. Discovery in California is broad. At issue is not merely the subject ladder, but CSI's general control and enforcement of safety policies at the jobsite. Plaintiff is entitled to discovery regarding CSI employees' use of ladders at the jobsite.

CSI

stands on its relevance arguments and fails to show substantial justification. CSI argues the documents are irrelevant, not in its possession and control or have previously been produced. CSI argues "all Weekly Subcontractor/ Foreman Coordination Meeting Minutes, including all Look-ahead schedules and Production Lists for the project through May 2019" have been produced. See Opp. 11:8-10. CSI argues there are "no other Post Incident Audit and walkthroughs/ reviews conducted by Paul Sanders other than the January 28, 2019, report which CSI produced." Id. at 11:11-12. CSI argues it "produced to Plaintiff all AHA reports in its possession, custody and control." Id. at 11:18. CSI argues it produced "a

three-page report related to the January 24, 2019, Stand-Down Safety Meeting... This is all CSI had in its possession, custody and control.” Id. at 11:20-21.

CSI argues it does not have any documents regarding the location, examination or storage of the subject ladder.

CSI's

arguments are made in its opposition, not under penalty of perjury. Counsel Ross' declaration, under penalty of perjury, confirms the production referenced was actually made. Decl. Ross, paras. 10-11, 14-15. Ross declares “Plaintiff is not entitled to any further production of documents as CSI has produced or will have produced at the time of the hearing on this Motion to Compel all relevant documents in its possession, custody and control and no additional documents can or should be ordered to be produced.” Id. at para. 15.

This

statement is concerning, as counsel does not state CSI has no documents relating to safety or control, as alleged in the body of the motion. Further, an assertion that CSI “will have” produced all relevant discovery by the time of hearing does not provide clarity as to what CSI has produced and what it intends to produce prior to the hearing. To the extent CSI states it will serve documents, which should have been produced in response to the inspection demand, CSI cannot show substantial justification in withholding such documents.

As

CSI withheld discovery relating to its own employees' usage of ladders and acted without substantial justification, the court must impose sanctions. See Code Civ. Proc. §§2025.480(j), 2020.410(d). Plaintiff requests a rate of \$650/hour. See Decl. Henriks, para. 11. This is unreasonable for a simple discovery dispute.

The

court finds \$450/hour for work on this motion is reasonable. Plaintiff requests 1.5 hours for review of correspondence and discovery production. Id. at para. 12. Sanctions are not awardable for basic litigation conduct which would naturally occur, regardless of this motion being filed. Plaintiff requests 1.5 hours for separate statement drafting. Id. Plaintiff requests 4.5 hours for legal research and motion drafting and 1 hour for revisions. Id. Seven hours on a basic discovery motion is not reasonable; the court awards 4 hours for research, drafting and revision.

GRANTED;

CSI to produce all non-privileged documents relating to employees' usage of ladders at the worksite within 30 days. The court to confer with counsel regarding CSI's alleged lack of further responsive documents and further production since filing of this motion. Sanctions of 5.5 hours at \$450/hour against CSI only, totaling \$2,475, payable within 30 days.